

U.S. DEPARTMENT OF AGRICULTURE
WASHINGTON, D.C. 20250

DEPARTMENTAL REGULATION	NUMBER: DR 1521-001
SUBJECT: Legal Review and Execution of Non-Personnel and Non-Program Civil Rights Settlement Agreements	DATE: February 6, 2024
OPI: Office of the General Counsel	EXPIRATION DATE: February 6, 2029

<u>Section</u>	<u>Page</u>
1. Purpose	1
2. Scope	1
3. Special Instructions/Cancellations	2
4. Policy	2
5. Roles and Responsibilities	3
6. Inquiries	4
Appendix A – Acronyms and Abbreviations	A-1
Appendix B – Definitions	B-1
Appendix C – Authorities and References	C-1

1. PURPOSE

This Departmental Regulation (DR) establishes the United States Department of Agriculture (USDA) requirements for obtaining legal sufficiency review and concurrence for monetary non-personnel and non-program civil rights settlement agreements above certain thresholds. This DR also sets forth the level of authority necessary for the execution of these settlement agreements by USDA Mission Areas, agencies, and staff offices.

2. SCOPE

This DR applies to all USDA Mission Areas, agencies, and staff offices.

3. SPECIAL INSTRUCTIONS/CANCELLATIONS

- a. This DR supersedes DR 1521-001, *Legal Review and Execution of Settlement Agreements*, dated January 4, 2018.
- b. See [DR 1521-002](#), *Legal Review and Execution of Personnel Settlement Agreements* and [DR 1521-003](#), *Legal Review and Execution of Settlement Agreements for Program Civil Rights Matters* for requirements for obtaining legal sufficiency review and concurrence for program civil rights and personnel settlement agreements.
- c. This DR is effective immediately when published and will remain in effect until it is superseded, or it expires.

4. POLICY

- a. It is the policy of USDA that monetary settlement agreements be entered into by individuals within Mission Areas, agencies, and staff offices at sufficiently high levels of authority to ensure that the settlements are in the best interests of the Government. It also is the policy of USDA that monetary settlement agreements above certain thresholds be reviewed by and concurred in by the Office of the General Counsel (OGC).
- b. It is the policy of USDA that, if after reviewing, OGC deems a draft monetary settlement agreement legally insufficient or otherwise does not concur, the settlement agreement must not be entered into by the submitting USDA Mission Area, agency, or staff office. OGC's legal sufficiency review and concurrence is in addition to existing processes that USDA Mission Areas, agencies, and staff offices use for negotiating and processing monetary settlement agreements.
- c. Non-Personnel and Non-Program Civil Rights Settlement Agreements
 - (1) It is the policy of USDA that prior to entering into a non-personnel or non-program civil rights settlement agreement in an amount of \$500,000 or more, inclusive of all monetary and non-monetary relief that carries a dollar value and attorneys' fees or more, including attorneys' fees, all USDA Mission Areas, agencies, and staff offices must first submit the agreement to OGC for legal sufficiency review and concurrence.
 - (2) The requirement for OGC review of and concurrence in non-personnel and non-program civil rights settlement agreements does not apply to any of the following:
 - (a) Settlements pursuant to the *Federal Tort Claims Act* ([28 United States Code \(U.S.C.\) §§ 2671-2680](#)), which are processed in accordance with regulations of the Department of Justice and USDA [DR 2510-001](#), *Claims Against the United State*;

- (b) Negotiation and settlement of or issuance of final contracting officer decisions related to requests for equitable adjustment or claims submitted by procurement contractors, which are processed by USDA procurement personnel in accordance with the *Contract Disputes Act* ([41 U.S.C. § 7101 et seq.](#)), the [Federal Acquisition Regulation](#), and the [Agriculture Acquisition Regulation](#); and
- (c) USDA Mission Area, agency, and staff office debt collection activities.

5. ROLES AND RESPONSIBILITIES

- a. The USDA General Counsel will provide legal sufficiency review and concurrence or nonconcurrence for settlement agreements above certain thresholds as set forth in Section 4, *Policy*.
- b. USDA Mission Area Heads, Agency Heads, and Staff Officer Directors will:
 - (1) Take the necessary steps to ensure awareness of and compliance with this directive within their organization, and to ensure that settlement agreements above the thresholds set forth in Section 4 above are provided to OGC for advice, required legal sufficiency review, and concurrence; and
 - (2) Take the necessary steps to ensure that settlement agreements are approved by individuals with sufficient authority within the organization.
- c. Approving Official Levels for Non-Personnel and Non-Program civil rights Settlement Agreements:
 - (1) Non-personnel and non-program civil rights settlement agreements of less than \$100,000, inclusive of attorneys' fees, must be approved by the Deputy Administrator for Management (or equivalent position), or higher.
 - (2) Non-personnel and non-program civil rights settlement agreements of \$100,000 to \$499,999, inclusive of attorneys' fees, must be approved by an Agency Head, Staff Office Director, or higher.
 - (3) Non-personnel and non-program civil rights settlement agreements of \$500,000 or more, inclusive of attorneys' fees, must be approved by an Under Secretary, Assistant Secretary, or higher.

7. INQUIRIES

USDA Mission Areas, agencies, and staff offices should direct questions and inquiries regarding this DR to OGC at telephone number 202-720-3351.

-END-

APPENDIX A

ACRONYMS AND ABBREVIATIONS

DR	Departmental Regulation
EEO	Equal Employment Opportunity
EEOC	Equal Employment Opportunity Commission
MSPB	Merit Systems Protection Board
OGC	Office of the General Counsel
OSC	Office of Special Counsel
REE	Research, Education, and Economics
RO	Resolving Official
SES	Senior Executive Service
SL	Senior Level
ST	Scientific and Professional Level
U.S.C.	United States Code
USDA	United States Department of Agriculture

APPENDIX B

DEFINITIONS

Agency. Organizational units of the Department, other than staff offices as defined below, whose heads report to officials within the Office of the Secretary, Deputy Secretary, Under Secretaries, Assistant Secretaries, and Assistant to the Secretary. (Source: USDA, [DR 0100-001](#), *Departmental Directives System*)

Mission Area. A group of agencies with related functions that report to the same Under or Assistant Secretary. Research, Education, and Economics (REE) is an example of a Mission Area. (Source: USDA, DR 0100-001)

Non-Personnel Settlement Agreement. Proposed monetary settlement terms and offers for resolution of non-personnel and non-program civil rights claims and litigation.

Personnel Settlement Agreement. Proposed monetary resolution terms, offers of resolution, or written agreements to resolve informal or formal Equal Employment Opportunity (EEO) complaints pending in the Department or at the Equal Employment Opportunity Commission (EEOC), matters pending before the Office of Special Counsel (OSC), or appeals pending before the Merit Systems Protection Board (MSPB).

Resolving Official (RO). A USDA employee at the Senior Executive Service (SES), Senior Level (SL), or Scientific and Professional level (ST) or higher level with delegated authority to resolve a matter or case on behalf of the Secretary and USDA. In personnel settlements, the RO should not be the responsible management official or an official directly involved in the facts of the case, as determined by the Mission Area, agency, or staff office, and should be at the same organizational level or higher of the responsible management official. The RO may be someone from a different subcomponent of the Mission Area, agency, or staff office involved.

Staff Office. Departmental administrative offices whose heads report to officials within the Office of the Secretary. (Source: USDA, DR 0100-001)

APPENDIX C

AUTHORITIES AND REFERENCES

[Agriculture Acquisition Regulation](#)

Contracts Dispute Act, [41 U.S.C. § 7101 et seq.](#)

[Federal Acquisition Regulation](#)

Federal Tort Claims Act, [28 U.S.C. §§ 2671-2680](#)

USDA, [DR 0100-001](#), *Departmental Directives System*, January 4, 2018

USDA, [DR 1521-002](#), *Legal Review and Execution of Personnel Settlement Agreements*, December 26, 2023

USDA, [DR 1521-003](#), *Legal Review and Execution of Settlement Agreements for Program Civil Rights Matters*, December 26, 2023

USDA, [DR 2510-001](#), *Claims Against the United States*, June 4, 2015